

**IN THE COURT OF APPEAL OF TANZANIA
AT DAR ES SALAAM**

(CORAM: RUTAKANGWA, J.A., KILEO, J.A., AND MASSATI, J.A.)

CRIMINAL APPEAL NO. 278 OF 2008

**1. EMILIAN AIDAN FUNGO @ ALEX 1st APPELLANT
2. GEORGE JOHN MWAGANGE 2nd APPELLANT**

VERSUS

THE REPUBLIC RESPONDENT

**(Appeal from the decision of the High Court of Tanzania
at Dar es Salaam)**

(Mihayo, J.)

**dated 10th day of March, 2008
in**

HC. Criminal Appeal No. 141 of 2007

JUDGMENT OF THE COURT

1 & 18 December, 2009

RUTAKANGWA, J.A.:

PW1 Majid Hatib, is a driver by profession. As of 19th March, 2004, he was a cab driver, driving a Toyota Corona car with registration No. TZB 6997. On this particular day, at about 11.30 p.m., he was along Shekilango road in Dar es Salaam city looking for

business. He was with one PW5 Sudi Salum. They were, at that hour, hired by three people, all strangers to them, who wished to be taken to Mapambano Primary School.

On reaching Mapambano, PW1 and PW5 were manhandled and at gun point robbed of the car. The robbers drove the car to Makongo Chuo cha Ardhi where they offloaded PW5 and PW1, and left with the car. The victims reported the robbery at the University Police post. The car was later found abandoned at Tegeta area of Dar es Salaam city.

The following day, the two appellants and another person were arrested at Chalinze by PW7 No E 4420 D/Cpl. Dadi on suspicion of having been involved in a robbery incident at Tegeta. The appellants were brought to Dar es Salaam. On 22nd March, 2004, PW6 Assistant Inspector of Police Ramia conducted an identification parade. The parade involved ten (10) people, among whom were the three suspects. The identifying witness was only PW1. The latter picked the two appellants only out of the group and thereafter gave his

statement to the police. Subsequently, PW3 No. D 901 D/Ssgt. James and PW4 No. C9601 D/Cpl. Michael allegedly recorded the cautioned statements of the appellants, in which they are shown to have confessed to robbing PW1's car. They were then charged with the offence of armed robbery contrary to section 287A of the Penal Code in the Resident Magistrate's Court of Kisumu.

The trial of the appellants was conducted by two magistrates. The first magistrate, whose impartiality was consistently questioned by the appellants, heard the entire prosecution case. Thereafter she disqualified herself. Before her, PW1 and PW5 had testified that the three people who had hired them and subsequently robbed them of the car included the 2 appellants.

When the second trial magistrate took over the trial, the prosecution closed its case. This learned trial Resident Magistrate, on being satisfied that the prosecution had "*proved their case beyond reasonable doubts*," held that the appellants had a case to answer. Without informing them of their statutory rights under section 231(1)

of the Criminal Procedure Act, Cap 20, Vol. 1 R.E. 2002 (the C.P.A), he called upon them to enter their defence.

The appellants denied committing the alleged robbery. They testified that the claimed confessions to the robbery contained in the cautioned statements, were not voluntarily made. They were extracted from them under coercion and torture, they said. They equally denied having been arrested together by PW7 at Chalinze, while in possession of any gun. While the 1st appellant (Emilian) claimed that he was taken off a bus at Chalinze Police post while travelling from Morogoro to Dar es Salaam, the second appellant (George) claimed that he was ordered to disembark from Hood bus at Chalinze Police post when **en route** to Iringa from Dar es Salaam.

The judgment of the trial court is sketchy and glaringly lacking in analysis. Being a summarised version of the evidence of each witness in the case, it does not, in our opinion, qualify to be called a judgment of a trial court in terms of section 312 (1) of the CPA. All the same, it can be gleaned from its concluding paragraph that the

trial magistrate convicted the appellants as charged on the basis of the visual identification evidence of PW1 and PW5 and the confessions contained in their cautioned statements. He summarily dismissed the allegations of torture because they were *"not substantiated by evidence like PF3 to show that there was force."* The appellants were accordingly sentenced to thirty (30) years imprisonment.

Aggrieved by the conviction and sentence, the appellants appealed to the High Court. The latter court sitting at Dar es Salaam, dismissed the appeal. In a short judgment, the learned first appellate judge said:-

*"I am satisfied that the appellants were properly identified by PW1 and **PW4** (sic) at the scene of the crime and that PW1 identified the appellants at the identification parade. I am also satisfied that the appellants made caution statements willingly. I agree with Ms. Sinda that the conviction of the appellants was well founded. The appeal*

against conviction is devoid of merit and is hereby dismissed."

Not satisfied with the High Court decision, the appellants have lodged this appeal. The appeal is predicated upon these three major grounds of complaints. **One**, that the visual identification evidence relied on by the two courts below was very weak and unreliable. **Two**, the identification parade was irregularly conducted. **Three**, the cautioned statements were illegally obtained and irregularly admitted in evidence. On the basis of these grounds they have urged us to quash their conviction and set aside the sentence of imprisonment imposed on them.

The respondent Republic was represented by Ms Andikalo Msabila, learned State Attorney. At first she was disposed to support the conviction of the appellants on the basis of the grounds relied on by the two courts below. However, she was forced to abandon this position when it dawned on her that the alleged confessions were not proved to have been voluntarily made, the identification evidence

was not watertight and the trial was flawed by fundamental irregularities. She, too, urged us to allow the appeal.

This Court in **FELEX KICHELE AND EMMANUEL TIENYI @ MARWA v Republic**, Criminal Appeal No. 159 of 2005 (unreported), said:

"It is an accepted practice that a second appellate court should very sparingly depart from concurrent findings of fact by the trial court and the first appellate court. Indeed, there is a presumption that disputes on facts are supposed to have been resolved and settled by the time a case leaves the High Court. That is part of the reason why under section 7 (6) (a) of the Appellate Jurisdiction Act, 1979 it is provided that a party to proceedings under Part X of the CPA, 1985 may appeal to the Court of Appeal on a matter of law but not on a matter of fact."

We believe that this is common knowledge. For this reason, we shall not be easily compelled to interfere with the concurrent findings of the two courts below that both PW1 and PW5 satisfactorily

identified the appellants as the robbers and further that the two appellants freely and voluntarily confessed to the robbery to PW3 and PW4. We can only do so if we are satisfied that these findings were based on a disregard of an established principle of practice, misapprehension of the evidence, omission to consider available evidence, a misapprehension of the applicable law and/or misdirections or non-directions on the evidence. We can also interfere on being convinced that the appellants were not given a fair hearing by the two courts below.

We have already shown in passing that the judgment of the trial court was not a judgment in terms of section 312(1) of the CPA. This statutory provision directs that such a judgment "shall contain the point or points for determination, the decision thereon and the reasons for the decision." The judgment of the trial court does not contain these essential ingredients. It has only a conclusion which does not show the reasons why the evidence of PW1 and PW5 was preferred to that of the appellants who had vehemently denied the commission of the offence. We have also found out that the finding

that the appellants voluntarily confessed to the robbery was based on a clear misapprehension of the law by the trial magistrate. The appellants had no legal duty to prove that the alleged confessions were not voluntarily made. The duty is always on the prosecution to prove beyond reasonable doubt that the disputed confessions were voluntarily made by the accused persons (section 27(2) of the Evidence Act, Cap.6).

We are aware that evidence that a witness had identified an accused person at an identification parade is not substantive evidence. In terms of section 60(1) of the CPA, such a parade may be held at the investigation stage only *"for the purpose of ascertaining whether a witness can identify a person suspected of the commission of an offence."* To be of any value in criminal proceedings, before such a parade is held the identifying witness must have earlier, given a detailed description of the suspect, who was unknown to him, which would help the investigators in their search for the suspect and if any is arrested eventually, this description would form a basis for the witness's identification at the parade. Neither PW1 nor PW5 gave

such description. Furthermore, we have gathered from the evidence that, the appellants were not informed that they would be put up for identification nor of their rights to have their relatives, friends, advocate, etc. in attendance. Also, after the parade, the appellants were not asked for their opinions on whether they were satisfied with the way the parade was conducted. Worse still, the evidence shows that after PW1 had been called to the identification parade PW6 did not explain the purpose of the parade at all, nor did he ask PW1 and record his replies thereto, in what connection he was able to identify the two suspects.

We also understand that in holding such parades the accepted practice is that persons to be selected to make up the parade should as far as possible be of similar age, height, general appearance and class of life, with the suspect(s). Furthermore, the police are required to hold more than one parade when two or more suspects are involved, each parade having a different set of personnel. PW6 told the trial court that he did adhere to all this. We think he was not being truthful. This is because the three suspects were lumped

together in one parade involving ten personnel in all. More discomfoting is the undisputed fact that the parade personnel, going by the evidence of PW1, were not of the same size, height, and age. While the 1st appellant was "fat", he testified, the 2nd appellant was "the youngest" of the three robbers. They were, therefore, easily distinguishable from the other seven. There was, to say the least, substantial non-compliance with Rule 2 (c),(d), (n), (q) and (r) of the Police General Orders (PGO) No.232, made under section 7(2) of the Police Force and Auxiliary Services Act, Cap 322 R.E.2002.

On the cautioned statements (exhibit P2, of the 2nd appellant and exhibit P3, of the 1st appellant), we have these pertinent observations. Although the appellants were arrested on 20th March, 2004, exhibit P3 was recorded on 24th March, 2004, many days after the elapse of the basic period of four hours, which was not extended, as provided for under sections of 50 and 51 of the CPA. Exhibit P2, on the other hand, shows neither the date nor the times when it was recorded. Its genuineness, then, is very much doubted.

Furthermore, regardless of whether these statements were recorded under the provisions of either sections 57 or 58 of the CPA, they both have identical defects. These are that the appellants were not asked to read them and, if possible, make any alterations or corrections on them or add further statements to them. Also, they do not have any formal certificate at the end signed by the appellants themselves as mandatorily required under these sections.

All these glaring misdirections, misapprehensions of settled principles of law and practice and procedural defects, were brought to the attention of the learned first appellate judge through the appellants' joint petition of appeal. Most of them, it is apparent, were ignored, save for his holding that the confessions were voluntary.

It is trite law that a first appeal is in the form of a re-hearing. An appellant is entitled to the first appellate court's own consideration and view of the evidence as a whole and its own decision thereon – [**D.R. PANDYA v R**, [1957] EA336 and **EDWIN**

LUSANJE v R., Criminal Appeal No. 201 of 2008 (unreported)].

Failure to discharge this basic duty, is in our view, a dereliction of duty. It becomes our duty, then, to do that which the two courts below failed to do.

As we have already sufficiently demonstrated, the conviction of the appellants was based on the purported visual identification evidence of PW1 and PW5 as well as the alleged confessions of the appellants. We have two crucial issues to resolve here. **One**, was the identification evidence watertight to ground a conviction with or without corroboration? **Two**, were the alleged confessions voluntarily made by the appellants? We shall start with the second issue.

It is a mundane truth that there is no better evidence in a criminal trial than that of an accused person who admits committing the offence he is charged with. However, such an admission or confession must be free of any suspicion. The confession should have been freely and voluntarily made. Settled law is that when a

competent witness positively testifies that an accused person confessed to the crime, the confession will be taken to have been freely and voluntarily made until objection is raised against it.

Objection to an alleged confession may be premised on two grounds. **One**, that it was not made at all. **Two**, that although it was made it was a result of torture, threats, inducements, promises or other prejudices held out by the police officer(s) to whom it was made or by any other person in authority (section 27(3) of the Evidence Act). It is our settled view, that such an objection can be raised in a trial, where an accused person is undefended as was the case here, after the trial court has informed the accused of his right to say something in connection with the confession, before it is admitted in evidence. Once there is an objection to it, then the trial court must stop everything and proceed to conduct a trial within a trial or any other meaningful inquiry to determine whether or not such a confession was indeed made and if it was, whether it was voluntarily made. Any alleged confession admitted without following this procedure, must of necessity be discounted (**TWAHA ALLI & 5**

OTHERS v. R, Criminal Appeal No. 78 of 2004 (unreported), among many others.)

In the trial of the appellants, this time honoured procedure was not followed. As a result, the learned trial magistrate fell into an error of law and held that the appellants' confessions were voluntarily made because they had not proved that they had been tortured. The learned first appellate judge, unfortunately, failed to notice this misdirection. For this reason alone, we discount the confessional evidence in its totality. We can now only comment in passing that these confessional statements, would have also been justifiably excluded under section 169 of the CPA on the ground of having been illegally obtained, had the procedure explained above been observed by the trial court. We are now left with the visual identification evidence only.

Evidence of visual identification came from PW1 and PW5. These two witnesses told the trial court that the three people who robbed them of the car were total strangers to them. All the same,

they both confidently told the trial court and were believed that having identified the two appellants at the identification parade, they were certain that the appellants participated in the robbery. Having studied the evidence of the two witnesses, unlike the two courts below we have, respectfully, found it sufficiently wanting in cogency and/or truthfulness. We shall start with the evidence of PW5.

PW5 asserted in his evidence that he not only saw the appellants at the scene of the crime, but that he also positively identified them at the identification parade held by the police at Oyster Bay Police station. Whether by design intending to deceive or inadvertence, PW5 did not tell the trial court when that parade was held. This omission is significant because going by the rest of the evidence on record, only one identification parade was held which involved only PW1. This has led us to only one inevitable conclusion. It is that PW5 deliberately gave false evidence in order to boost up his credibility. Since PW5 did not know the appellants before, did not give any description of the robbers he saw to anybody, if at all he witnessed the robbery, and did not participate in the identification

parade, his purported dock identification evidence on 22nd February, 2005 about a year after the robbery and after the appellants had made numerous court appearances, should not have been given any weight at all. We accordingly reject his evidence.

In taking PW1 to be a credible and truthful witness, the two courts below pegged this crucial finding on the fact that he easily identified the appellants at the identification parade. We have already shown that the conduct of the parade was flawed by a number of fundamental irregularities which reduced it, in the words of the appellants, to "*a mockery*". We agree with this assessment. We shall, therefore, attach no weight at all to the evidence relating to this sham parade- see, **FRANCIS MAJALIWA DEUS & THREE OTHERS v. REPUBLIC**, Criminal Appeal No.139 of 2005 (unreported).

The evidence of PW1 standing alone, is not convincing at all. He appears, gathering from the evidence before us, not to have given the description of any of the three robbers to anybody until

after he had picked the two appellants out of the identification parade line up. It was in his evidence and while being cross-examined when he claimed that one of the robbers (1st appellant) was "fat" and the other one (2nd appellant) was "the youngest". Conspicuously missing in his evidence is his description of the third suspect. That PW1 never gave any description of the suspects is proved by lack of evidence to show that the appellants were arrested for having robbed him of his car basing on the description given by him. In the absence of such earlier descriptions of the suspects we are compelled to hold that PW1's evidence was mere guess work. In the circumstances, the evidence of PW1 ought to have been taken with great circumspection. That PW1 picked the two appellants out at the identification parade was no guarantee that he was absolutely unmistaken in his purported identification of them.

The law on visual identification evidence of a single witness is now certain. As a rule of practice, the evidence of such a witness, regarding a stranger made under unfavorable conditions, needs corroboration. However, a court is not precluded from convicting on

the uncorroborated evidence of such a witness if the court is **fully satisfied** that the witness is telling the truth (**HASSAN JUMA KANENYERA AND OTHERS V REPUBLIC** [1992] TLR 100).

However, as this Court held in **FELEX s/o KICHELE** (supra), "*a court cannot be said to be satisfied that the single witness was telling the truth where circumstances show that although the witness might be testifying honestly on what they believe is the truth, yet they might be mistaken....*"

As we have endeavored to show, we do not doubt PW1's assertions that he was robbed of his car on the night of 19th March, 2004 by three armed bandits who were strangers to him. But given the established facts, it is our settled view that PW1 might as well have been honest but over - zealously mistaken. We might have been tempted to hold otherwise if he had earlier given a detailed description of the suspects which eventually matched with the appearances of the appellants. In the absence of other incriminating evidence, we are enjoined by law to give the appellants the benefit of

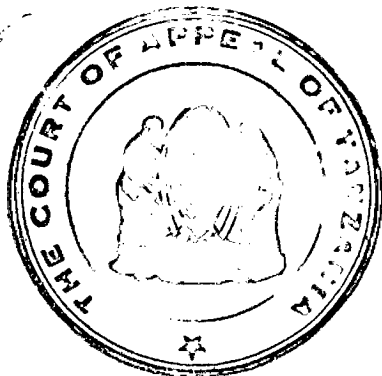
doubt. We accordingly hold that the prosecution failed to prove its case beyond reasonable doubt.

Before we conclude, we have these brief observations to make on the conduct of the trial. **One**, failure to comply with the mandatory provisions of section 231 (1) of the CPA as was done in this case, might in appropriate cases lead to the nullification of the conviction. **Two**, we understand that section 214 (1) of the CPA does not direct the second trial magistrate to inform an accused person of the right to have the witnesses who had already testified re-called. However, in this particular case where it is clear that the first trial magistrate's impartiality had been persistently challenged from the commencement of the trial and had to disqualify herself, after she had received the evidence of all the prosecution witnesses, all things being equal, we would not have hesitated to nullify the trial under section 214(2) of the CPA. We shall not do so, however, since the prosecution failed to prove its case.

All said, we allow this appeal. The conviction of the appellants for armed robbery is accordingly quashed. The sentence of imprisonment is also quashed and set aside. The appellants are to be released from prison forthwith unless they are otherwise lawfully held.

DATED at DAR ES SALAAM this 14th day of December 2009.

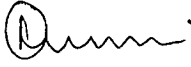
E.M.K. RUTAKANGWA
JUSTICE OF APPEAL



E.A. KILEO
JUSTICE OF APPEAL

S.A. MASSATI
JUSTICE OF APPEAL

I Certify that this is a true copy of the original.


N.N. CHUSI
DEPUTY REGISTRAR